

**UNITED STATES DISTRICT COURT
DISTRICT OF MINNESOTA**

Joseph Kirchner,

Case No. 26-CV-2594 (LMP/DJF)

Plaintiff,

vs.

**MEMORANDUM OF LAW IN
SUPPORT OF DEFENDANT’S
MOTION TO DISMISS**

Keith Ellison,

Defendant.

INTRODUCTION

After his first attempt at suing Attorney General Keith Ellison (“AG Ellison”) was dismissed as frivolous, Plaintiff Joseph Kirchner has decided to refile the same complaint. Once more, Kirchner’s complaint fails. Kirchner lacks standing to bring his claim, sovereign immunity bars his claims for declaratory relief, and he has otherwise failed to state a claim. Moreover, Kirchner has violated rules prohibiting claim-splitting and duplicative litigation. This action must be dismissed with prejudice.

STATEMENT OF FACTS

On January 27, 2026, Kirchner first brought suit against AG Ellison, by filing a 105-page petition for wide-ranging declarative and injunctive relief. *See* 26-cv-00726 (“Kirchner I”) The complaint sought relief against various federal agents, requesting limits on federal agent’s use of force, injunctive relief requiring the return of children who were transported out of Minnesota by immigration officials, declarative relief against the United States Supreme Court, a declaration that qualified immunity was unconstitutional, and a

permanent injunction against AG Ellison from enforcing Minnesota Statute Section 626.89, a statute concerning the discipline of peace officers. (*Id.*) Kirchner did not sue any federal agent or agency in this suit. AG Ellison moved to dismiss. (*Kirchner I*, ECF Doc. 19.)

Kirchner then filed an amended complaint. (*Kirchner I*, ECF Doc. 26.) The amended complaint alleged that on February 10, 2026, Kirchner filed a criminal referral with the Minnesota Attorney General’s office, alleging “computer crimes, trade secret theft, AI child safety endangerment, and copyright violations by a Minnesota utility company.” (*Id.*, p. 8.) The amended complaint further alleged that the Minnesota Attorney General’s Office (“AGO”) responded to his referral on February 26, 2026, disclaiming its authority investigate criminal matters. (*Id.*, *Kirchner I*, ECF Doc. 26-1.) Kirchner alleged that this statement was a false statement of law, and brought six claims: 1) a First Amendment violation claim under 42 U.S.C. § 1983, 2) an Equal Protection Clause claim, 3) declarative and injunctive relief relating to AG Ellison’s authority under Section 8.01, 4) a declaration that the February 26, 2026, letter exceeded the authority of the Office of the Attorney General, 5) declaratory relief stating that Section 626.89 is unconstitutional, 6) and “legal relief” under 42 U.S.C. § 1983. (*Kirchner I*, ECF Doc. 26, pp. 96-101.)

On March 30, 2026, Chief Judge Patrick Schlitz *sua sponte* dismissed the amended complaint. (*Kirchner I*, ECF Doc. 29.) In his order, Chief Judge Schlitz wrote that Kirchner’s case was “...an obvious abuse of the Court’s already strained resources” (*Id.*, p. 2.) Chief Judge Schlitz further wrote that Kirchner lacked standing, that the court lacked the power to make broad legal precepts absent an Article III controversy, and that the

amended complaint violated Fed. R. Civ. P. 8(a)(2). (*Id.*) Finally, Chief Judge Schlitz warned Kirchner, “should he file additional frivolous complaints or other papers, he may be subject to sanctions, including a filing restriction.” (*Id.*, p. 3.) Kirchner then appealed to the Eighth Circuit, where the appeal remains pending. *Joseph Kirchner v. Keith Ellison*, 26-cv-00726, *appeal filed* (8th Cir. Case No. 26-1615, April 1, 2026).

Kirchner then decided to file this suit. The Complaint repeats Kirchner’s previous grievances regarding his February 10, 2026, letter. Specifically, Kirchner repeats his allegation that he sent a letter, supported by 286 exhibits and 65,000 “forensic files,” to the AGO requesting a criminal prosecution under the Prevention of Consumer Fraud Act. (ECF Doc. 1, pp. 1, 9.) Kirchner also repeats a previous allegations that a disclaimer on the AGO website incorrectly states that the Office does not have the authority to investigate criminal matters. (*Id.*, ¶¶ 22-26.) He also alleges that AG Ellison testified to the United States Congress that his office prosecutes Medicaid fraud, contradicting the assertion that the AGO does not investigate criminal matters. (*Id.*, ¶ 27-32.)

Kirchner brings four claims based on these allegations: 1) a First Amendment retaliation and Petition Clause violation under 42 U.S.C. § 1983, 2) an Equal Protection Claim under 42 U.S.C. § 1983, 3) a request for a declaratory relief regarding AG Ellison’s criminal investigatory authority, and 4) an ultra vires declaration regarding the February 26 letter and the AGO website disclaimer.

STANDARD OF REVIEW

A motion to dismiss for failure to state a claim under Rule 12(b)(6) requires courts to determine whether a complaint plausibly establishes “that the pleader is entitled to

relief.” *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007) (citing Fed. R. Civ. P. 8(a)(2)). This plausibility standard encompasses the requirement that plaintiffs comply with the short-and-plain pleading requirements of Federal Rule of Civ. Procedure 8. *See Sabal v. Robbinsdale Police Dep’t*, No. 22-cv-1732 (DWF/DTS), 2023 WL 2044520, at *6 (D. Minn. Feb. 16, 2023) (“To withstand a motion to dismiss under Rule 12(b)(6), a plaintiff must plead claims under Rule 8.”). In determining whether a complaint plausibly sets forth grounds for relief, the Court must accept all of Kirchner’s factual allegations as true and consider these allegations in the light most favorable to Kirchner. *See Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (citation omitted). The Court need not, however, accept as true legal conclusions couched as factual allegations. *Id.* Only complaints that present “sufficient factual matter” will survive a motion to dismiss. *Id.* Finally, although pro-se pleadings are liberally construed, they still must comply with the plausibility demands of Rule 12(b)(6) and allege facts sufficient to support the claims advanced. *See Stone v. Harry*, 364 F.3d 912, 914 (8th Cir. 2004).

ARGUMENT

I. DISMISSAL IS WARRANTED ON PRECLUSION GROUNDS

This action must separately be dismissed because it action contravenes the rule against duplicative litigation. As part of its general power to administer its docket, this Court may stay or dismiss a suit that is duplicative. *See Colorado River Water Conservation Dist. v. United States*, 424 U.S. 800, 817 (1976) (“As between federal district courts, ... though no precise rule has evolved, the general principle is to avoid duplicative litigation.”). “Litigation is duplicative if a plaintiff attempts to litigate ‘the same issue at the same time

in more than one federal court.” *Ritchie Capital Mgmt., L.L.C. v. Jeffries*, 849 F.Supp.2d 881, 888 (D. Minn. 2012) (quoting *Blakley v. Schlumberger Tech Corp.*, 648 F.3d 921, 932 (8th Cir. 2011)); *see also Olson v. Brott*, No. 09-CV-790-JNE-JJG, 2009 WL 4912135, at *6 (D. Minn. Dec. 11, 2009) (“If a judgment has not been entered in the first action, the plaintiff will be limited by the rule prohibiting the pursuit of ‘multiple federal suits against the same party involving the same controversy at the same time.’”) (quoting *Missouri ex rel. Nixon v. Prudential Health Care Plan, Inc.*, 259 F.3d 949, 954 (8th Cir. 2001)).

As the Eighth Circuit Court of Appeals has observed, “[t]he policy against duplicative litigation is motivated largely by economic concerns.” *Missouri ex rel. Nixon*, 259 F.3d at 954. Duplication requires courts “to adjudicate two actions when one action will resolve the parties’ controversy[,]” *id.*, and imposes “an often unnecessary burden” on courts and responding parties. *Rickmyer v. Jungers*, No. 14-CV-614-SRN-SER, 2015 WL 412859, at *10 (D. Minn. Jan. 30, 2015) (citation omitted).

There is no doubt that this action violates the rule against duplicative litigation. Kirchner’s claims here are based on the same operative facts as his claims in *Kirchner I*; the claims are nearly identical. To the extent they differ, each of his putative “new” claims could have been raised in *Kirchner I*.

Kirchner acknowledges that the Complaint is duplicative of *Kirchner I*. (ECF Doc. 1, pp. 5-6.) However, Kirchner argues that the merits of his case were not decided in *Kirchner I* because Chief Judge Schlitz dismissed his claim under Fed. R. Civ. P. 8(a)(2). (*Id.*) Not so. Ordinarily, dismissal of a complaint for failure to comply with Rule 8 should

be with leave to amend. *Koll v. Wayzata State Bank*, 397 F.2d 124, 127 (8th Cir.1968). But when a plaintiff persists in violating Rule 8, a district court may dismiss the complaint with prejudice. *See Micklus v. Greer*, 705 F.2d 314, 317 n. 3 (8th Cir.1983).

While the Chief Judge Schlitz did not say in his order whether the dismissal was with prejudice, it is clear that the order properly determined that Kirchner repeatedly violated Rule 8(a)(2): “As Kirchner has already had this pointed out to him in Ellison’s motion to dismiss, and as Kirchner responded by submitting a pleading that even more egregiously violates Rule 8(a)(2), the Court will dismiss his amended complaint.” (*Kirchner I*, ECF Doc. 29, p. 3.) And the order also unequivocally found Kirchner’s claims to be meritless, “...Kirchner obviously lacks standing to seek virtually all of the relief he seeks... Plaintiff is warned that, should he file additional frivolous complaints or other papers, he may be subject to sanctions, including a filing restriction.” (*Id.*, pp. 203.); *see also Ellis v. Nike USA, Inc.*, 158 F.4th 932, 936 (8th Cir. 2025).

But even if the *Kirchner I* dismissal does not constitute an adjudication on the merits, dismissal is nonetheless proper. The rule against duplicative litigation seeks to promote judicial economy and to protect parties from vexatious litigation over the same subject matter. *Kezhaya v. City of Belle Plaine, Minnesota*, 78 F.4th 1045, 1050 (8th Cir. 2023). Unlike *res judicata*, which requires an adjudication on the merits, the rule against duplicative litigation permits dismissal even when the first action is still pending. *Id.* Courts analyze whether the parties to an action are the same and whether the claims arise from the same nucleus of operative facts. *Lane v. Peterson*, 899 F.2d 737, 742 (8th Cir. 1990).

Here, the test is satisfied. The parties are identical and the Complaint arises from the exact same incident as *Kirchner I*. As such, this action must be dismissed. *Cf. Parker v. Matthews*, 71 Fed. Appx. 613, 614 (8th Cir. 2003) (affirming dismissal of plaintiff's duplicative second complaint while appeal was pending)(citing *Missouri ex rel. Nixon*, 259 F.3d at 954).

II. THE COURT SHOULD DISMISS THE COMPLAINT FOR LACK OF SUBJECT-MATTER JURISDICTION.

“Subject-matter jurisdiction is a threshold requirement which must be assured in every federal case.” *Kronholm v. F.D.I.C.*, 915 F.2d 1171, 1174 (8th Cir. 1990). Where, as here, a Rule 12(b)(1) motion raises a facial challenge, “the factual allegations concerning jurisdiction are presumed to be true and the motion is successful if the plaintiff fails to allege an element necessary for subject matter jurisdiction.” *Titus v. Sullivan*, 4 F.3d 590, 593 (8th Cir. 1993). First, Kirchner lacks standing to bring his claims. Second, AG Ellison is entitled to sovereign and official immunity. Third and final, Kirchner has failed to allege prospective relief that would entitle him to relief under the *Ex Parte Young* exception to sovereign immunity. The Court should dismiss the complaint.

A. Kirchner Lacks Standing.

To establish Article III standing, Plaintiff bears the burden of showing he has (1) “suffered an injury in fact”; (2) the injury is “fairly . . . trace[able] to the challenged action of the defendant”; and (3) it is “likely, as opposed to merely speculative, that the injury will be redressed by a favorable decision.” *Lujan v. Defs. of Wildlife*, 504 U.S. 555, 560–61 (1992). Here, Kirchner cannot establish that he suffered a cognizable injury in fact. He

alleges that he was injured because the AGO denied his criminal referral through an allegedly false statement of law, leaving him without a law enforcement remedy for “documented crimes.” (ECF Doc. 1, p. 8.)

As an initial matter, Kirchner alleges that his original referral documented misconduct under Minn. Stat. § 325F.68, the Prevention of Consumer Fraud Act. It is obvious from Kirchner’s referral that he wanted a criminal prosecution from the AGO. (ECF Doc. 1-2, p. 10.) Notably, the Prevention of Consumer Fraud Act (“PCFA”) is not a criminal statute. If the Statute were criminal in nature, it would be found in Section 609 of Minnesota statutes, the Criminal Code. The February 26, 2026, letter does not disavow the AGO’s jurisdiction to investigate violations of PCFA, only the ability to investigate and prosecute criminal matters. Accordingly, there is no “misstatement of law” constituting an injury. The Minnesota Attorney General may only exercise the prosecutorial powers of a county attorney at the direction of the governor or via consent from a county attorney. *See* Minn. Stat. § 8.01; Minn. Stat. § 388.12.

Kirchner also argues that AG Ellison has made statements indicating that the AGO does have the ability to prosecute fraud. Indeed, the AGO does investigate and prosecute Medicaid fraud. These cases are prosecuted via referrals and consent agreements with county attorneys under Minn. Stat. § 8.01. *See e.g. State v. Borders*, Minnesota Court File Number 18-CR-22-4310.

Even if AG Ellison had prosecutorial power, Kirchner’s assertion that he is “without redress” is demonstrably false. As he acknowledges, the Federal Bureau of Investigations

has the power to investigate and prosecute cybercrimes. (ECF Doc. 1, p. 17.)¹ And the February 26 letter also referred Kirchner to the Hennepin County Attorney's office, which also has criminal prosecutorial power. But even more so, Minn. Stat. § 8.31 allows for private actions for violations of the PCFA, including damages and equitable relief. Minn. Stat. § 8.31, subd. 3a. Furthermore, prosecutions and criminal investigations are discretionary public duties and there is no right to compel the prosecution or investigation of an alleged wrongdoer. *Parkhurst v. Tabor*, 569 F.3d 861, 867 (8th Cir. 2009). Accordingly, Kirchner has not identified a right that the AGO allegedly violated to confer standing.

Kirchner wants the Court to make broad declarations about Minnesota state law. But absent an injury, the Court lacks jurisdiction to hear this case. Accordingly, Kirchner has not suffered an injury-in-fact that confers standing.

B. The Attorney General Is Immune from Plaintiff's Claims.

AG Ellison is entitled to both sovereign and official immunity. First, AG Ellison is a state official being sued in his official capacity, which is prohibited by the Eleventh Amendment. Furthermore, AG Ellison is not a proper defendant under *Ex parte Young* for Kirchner's claims. Second, assuming Kirchner had alleged a prospective claim, AG Ellison is nonetheless entitled to official immunity based on the discretion afforded by his office.

i. Sovereign Immunity.

¹ Whether or not the FBI decides to act on Kirchner's allegations is a separate matter. Regardless, the FBI's refusal to assist Kirchner does not confer him standing to sue AG Ellison.

“The Eleventh Amendment establishes a general prohibition of suits in federal court by a citizen of a state against his state or an officer or agency of that state.” *281 Care Comm. v. Arneson*, 638 F.3d 621, 632 (8th Cir. 2011).

Here, AG Ellison is a Minnesota state official being sued in his official capacity. Minnesota has not consented to suit in federal court for violations of the U.S. Constitution. *Capers v. Ramsey Cnty. Pub. Def.*, No. 13-CV-1041 PJS/JJG, 2014 WL 1048517, at *4 (D. Minn. Mar. 18, 2014) (“[I]t is widely recognized that Minnesota has not waived its Eleventh Amendment immunity from suit in federal court for federal constitutional claims.”) (citation and quotation marks omitted)).

However, Kirchner alleges that he is seeking prospective declaratory and injunctive relief under the *Ex Parte Young* exception to sovereign immunity. In *Ex parte Young*, the Supreme Court established a limited exception to Eleventh Amendment immunity, allowing suit against state officials that seeks prospective injunctive relief to enforce compliance with federal law. 209 U.S. 123 (1908). To be a proper *Ex parte Young* defendant, the official must have “some connection with the enforcement” of the challenged law and “threaten and [be] about to commence proceedings.” *Minnesota Chapter of Associated Builders & Contractors v. Ellison*, 153 F.4th 695, 698 (8th Cir. 2025), *cert. denied*, 224 L. Ed. 2d 18 (Feb. 23, 2026)(citations omitted). AG Ellison is not a proper *Ex parte Young* defendant for Kirchner’s claims because although he has some connection to the enforcement of the PCFA, there is no allegation that he is “threatening” or “commencing” proceedings against Kirchner. And Kirchner’s requested relief is not prospective; he wants this Court to declare that the past statements of the AGO were

misstatements of law and force the AGO to investigate his claims. Accordingly, he has not pleaded any prospective claim for relief and his claims are barred by sovereign immunity.

III. KIRCHNER FAILS TO STATE A CLAIM FOR WHICH CLAIM RELIEF MAY BE GRANTED.

“At a minimum . . . a complaint must contain facts sufficient to state a claim as a matter of law and must not be merely conclusory in its allegations.” *Springdale Educ. Ass’n v. Springdale Sch. Dist.*, 133 F.3d 649, 651 (8th Cir. 1998); *see also Schatz Family v. Gierer*, 399 F. Supp. 2d 973, 983 (E.D. Mo. 2004) (finding that plaintiff must at a minimum “clearly delineate who she is suing, and for what cause of action, and there must be some factual context in the complaint[.]”). While the Court must take all facts alleged in the complaint as true, it is “free to ignore legal conclusions, unsupported conclusions, unwarranted inferences and sweeping legal conclusions cast in the form of factual allegations.” *Wiles v. Capitol Indem. Corp.*, 280 F.3d 868, 870 (8th Cir. 2002). Here, Kirchner has failed to plead any viable claim. Each should be dismissed.²

A. Kirchner Fails to Plead First Amendment Retaliation.

A First Amendment retaliation claim has three elements. Kirchner must allege: (1) he engaged in protected activity; (2) AG Ellison took adverse action against Kirchner that would chill a person of ordinary firmness from continuing the activity; and (3) the adverse action was motivated in part by Kirchner’s exercise of his constitutional rights.

² Count III of the Complaint is labeled “Declaratory Relief” and asks the Court for a declaration regarding the Attorney General’s powers under Minn. Stat. § 8.31. This Count is subject to dismissal because Kirchner lacks standing, as argued above. Count IV of the Complaint is labeled “Declaratory Judgment – Ultra Vires Official Action.” Count IV is subject to dismissal under *Pennhurst State School & Hospital v. Halderman*, 465 U.S. 89 (1984), as previously set forth.

Eggenberger v. W. Albany Twp., 820 F.3d 938, 943 (8th Cir. 2016). Kirchner’s complaint does not allege facts sufficient to survive a motion to dismiss on the second and third factors because it does not “nudge[]” the claims “across the line from conceivable to plausible.” *Twombly*, 550 U.S. at 570.

The protected activity at issue is Kirchner’s February 10 letter outlining what he believes is criminal activity. The AGO responded that they did not investigate criminal matters and referred Kirchner to two other government bodies that could assist with his request. The AGO did nothing to chill Kirchner’s speech nor would the action chill a person of ordinary firmness from continuing the activity. Moreover, Kirchner was and is free to pursue his own litigation against the alleged wrongdoers under the private attorney general statute. *See* Minn. Stat. § 8.31, subd. 3a.

As to the third factor, the Complaint does not plausibly allege that the action (sending a responsive letter) was retaliatory. Kirchner does not plead any facts from which a court could infer a discriminatory or retaliatory intent. Instead, Kirchner argues that AG Ellison met with individuals involved in the Feeding Our Future case about an unrelated matter. How this connects to Kirchner is unclear. There are literally zero facts to support his assertion that he was retaliated against.

B. Kirchner’s Right to Petition Claim Also Fails.

The First Amendment guarantees “the right of the people . . . to petition the Government for a redress of grievances.” To prove a claim under the Petition Clause, Scheffler must prove the Defendants acted with “[r]eckless or intentional indifference to [his] constitutional rights”; mere negligence will not suffice. *Woods v. Lemonds*, 804 F.

Supp. 1106, 1109 (E.D. Mo. 1992), *aff'd*, 991 F.2d 802 (8th Cir. 1993) (table). And Kirchner must show some actual harm. *See Ferrone v. Onorato*, 298 Fed. Appx. 190, 193 (3d Cir. 2008) (comparing right to petition to denial of court access claim, which requires an actual injury).

Kirchner's right to petition was not violated. He has not alleged that he is restricted in any way from petitioning the AGO. Instead, he only argues that his right to petition is chilled by an alleged misstatement of law. But more importantly, Kirchner does not have a constitutional right to have his referral investigated. And Kirchner has not alleged any harm. Accordingly, his right to petition claim fails.

C. Kirchner Has Failed To Plead An Equal Protection Claim

"The Equal Protection Clause generally requires the government to treat similarly-situated people alike." *Klinger v. Dep't of Corr.*, 31 F.3d 727, 731 (8th Cir. 1994) (citing *City of Cleburne v. Cleburne Living Ctr., Inc.*, 473 U.S. 432, 439 (1985)). In order to succeed on an equal-protection claim, a plaintiff must establish that their treatment was "invidiously dissimilar" to the treatment received by other similarly-situated persons. *Peck v. Hoff*, 660 F.2d 371, 372 (8th Cir. 1981); *Flittie v. Solem*, 827 F.2d 276, 281 (8th Cir. 1987). Kirchner, however, has set forth no factual allegations indicating that he was treated differently than similarly-situated litigants.

Kirchner's Equal Protection claim is a "class of one" claim. Dismissal of "class of one" Equal Protection claim is appropriate when plaintiffs fail to show (1) that they were intentionally treated differently than other similarly situated individuals, and (2) that there is no rational basis for the difference in treatment. *See Village of Willowbrook v. Olech*,

528 U.S. 562, 564 (2000) (describing requirements for “class of one” equal protection claims). A “class-of-one” plaintiff must “provide a specific and detailed account of the nature of the preferred treatment of the favored class.” *Jennings v. City of Stillwater*, 383 F.3d 1199, 1214 (10th Cir. 2004).

Simply claiming unequal treatment, without facts to support this claim, is insufficient to meet minimal pleading standards. *Iqbal*, 556 U.S. at 678; *Twombly*, 550 U.S. at 570; *Aldaco v. Holder*, No. CIV. 10-590 JRT/LIB, 2011 WL 825624, at *10 (D. Minn. Jan. 7, 2011) (“Plaintiff has not alleged any facts showing that he was treated differently from other inmates because he belonged to a protected class.”) (citing cases); *Pigott v. Corrs. Corp. of Am.*, No. CIV. 07-2003 JNE/JJG, 2008 WL 3244001, at *4, n.5 (D. Minn. Aug. 6, 2008) (“Even given the Court’s liberal construction of pro se pleadings, this wholly conclusory allegation is insufficient to state an Equal Protection race discrimination claim under § 1983.”) (citation omitted).

Kirchner has not identified any similarly situated litigants. Instead, Kirchner argues that AG Ellison preciously exercised criminal prosecutorial authority in relation to the Feeding Our Future defendants. (ECF Doc. 1, ¶ 76.) It is totally unclear from these pleadings how Kirchner believes he is similarly situated to the Feeding Our Future defendants. The Feeding Our Future defendants did not send referrals to AG Ellison. And again, AG Ellison’s prosecutorial and investigatory powers regarding Medicaid fraud come via referrals and consent agreements with county attorneys under Minn. Stat. § 8.01. Kirchner fails to articulate how those individuals are similar and in what way their

treatment was invidiously dissimilar. Accordingly, Kirchner's equal-protection claim should be dismissed.

CONCLUSION

Kirchner lacks Article III standing because he has not alleged a cognizable injury. In addition, sovereign immunity bars all his claims and the *Ex parte Young* exception does not apply. Finally, Kirchner has otherwise failed to plead a viable claim, and his complaint must be dismissed under Rule 12(b)(6).

Dated: June 17, 2026

Respectfully submitted,

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